

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Team # 3	CCRB Case #: 201500577	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/22/2013 6:10 PM, Friday, 11/22/2013 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/22/2015	Precinct: 121		
Date/Time CV Reported Tue, 01/28/2014 3:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/28/2014 3:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Golat	09913	950506	121 PCT
2. POM Leonid Shatkin	18486	947487	121 PCT
3. POM Jonathan Glazer	01037	949035	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Cimmino	11712	933693	121 PCT
2. POM Patrick Thompson	10379	942611	121 PCT
3. POM Antonio Cannata	18584	943044	121 PCT
4. POM Jeffrey Maira	16359	944113	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Glazer	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Jonathan Glazer stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Daniel Golat	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Daniel Golat stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Daniel Golat	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Daniel Golat frisked § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Golat	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Daniel Golat searched § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . POM Jonathan Glazer	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Jonathan Glazer frisked § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . POM Jonathan Glazer	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Jonathan Glazer searched § 87(2)(b) and § 87(2)(b)	F . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
G . POM Jonathan Glazer	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Jonathan Glazer threatened to arrest § 87(2)(b) and § 87(2)(b)	G . Unsubstantiated
H . POM Jonathan Glazer	Abuse: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Jonathan Glazer searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Unsubstantiated
I . POM Jonathan Glazer	Abuse: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Jonathan Glazer stopped § 87(2)(b) and § 87(2)(b)	I . Unsubstantiated
J . POM Leonid Shatkin	Abuse: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Leonid Shatkin stopped § 87(2)(b) and § 87(2)(b)	J . Unsubstantiated
K . POM Jonathan Glazer	Force: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Jonathan Glazer used physical force against § 87(2)(b)	K . Unsubstantiated
L . POM Leonid Shatkin	Abuse: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Leonid Shatkin frisked § 87(2)(b)	L . Unsubstantiated
M . POM Leonid Shatkin	Abuse: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Leonid Shatkin searched § 87(2)(b)	M . Unsubstantiated
N . POM Jonathan Glazer	Abuse: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Jonathan Glazer searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	N . Unsubstantiated
O . POM Leonid Shatkin	Abuse: On an unknown date in November of 2013, in front of § 87(2)(b) in Staten Island, PO Leonid Shatkin threatened to arrest § 87(2)(b)	O . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 28, 2014, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board by phone regarding four different incidents. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On a date determined by the investigation to be October 22, 2013, after § 87(2)(b) brother, made an eastbound turn from § 87(2)(b) onto § 87(2)(b) in Staten Island, PO Jonathan Glazer and PO Daniel Golat, both of the 121st Precinct, stopped the vehicle in which he, § 87(2)(b) and § 87(2)(b) were occupants (**Allegations A and B**). PO Glazer allegedly asked the men what they were doing and if they were aware that there had been a shooting near that location earlier. He also requested all of their identifications, which they provided. The officers then asked the men to exit the vehicle, and they complied. PO Golat allegedly frisked and searched § 87(2)(b) and § 87(2)(b) and PO Glazer allegedly frisked and searched § 87(2)(b) and § 87(2)(b) (§ 87(2)(b) alleged that both officers frisked and searched him) (**Allegations C, D, E and F**). PO Glazer told the men to tell him whether there was anything in the car because if they did not and he found something, they would all go to jail (**Allegation G**). PO Glazer searched the vehicle, and then told the men that they were free to go (**Allegation H**). § 87(2)(b) and § 87(2)(b) were not arrested or summonsed as a result of this incident.

On a date which § 87(2)(b) reported to be November 22, 2013, but the investigation could not determine, § 87(2)(b) and § 87(2)(b) sat talking in § 87(2)(b) vehicle, which was parked in front of § 87(2)(b). PO Glazer and PO Shatkin allegedly drove up behind § 87(2)(b) vehicle, stopped, then asked § 87(2)(b) to step out (**Allegations I and J**). § 87(2)(b) complied, and shouted to § 87(2)(b) to retrieve his phone to record the incident. As § 87(2)(b) picked up the phone, which was located in a cup holder, PO Glazer allegedly ran over to him and smacked his right hand, causing the phone to fall to the ground (**Allegation K**). PO Shatkin then told § 87(2)(b) to exit the vehicle and stand next to § 87(2)(b). § 87(2)(b) complied, and then PO Glazer allegedly frisked § 87(2)(b) and PO Shatkin allegedly frisked and searched § 87(2)(b) (**Allegations L, M and N**). § 87(2)(b) and § 87(2)(b) were then asked for their identifications, which they provided. After PO Glazer returned to his vehicle and stayed therein for about twenty minutes, he returned to § 87(2)(b) and § 87(2)(b) and told them that the officers had received a call that someone was sitting in a car smoking weed. He also told § 87(2)(b) that he had an active warrant in Staten Island. PO Glazer then searched the car, but did not find anything (**Allegation O**). The officers told the men that they were taking § 87(2)(b) in. § 87(2)(b) asked if he could take § 87(2)(b) property, and they permitted such. As § 87(2)(b) walked away with the officers, § 87(2)(b) called out to ask him what the passcode for his phone was. PO Shatkin then allegedly yelled to § 87(2)(b) “Go into the house. Go behind the gate before I lock you up, too” (**Allegation P**).

Mediation, Civil and Criminal Histories

- § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were arrested as a result of some of the incidents, making it unsuitable for the CCRB's mediation program.

- On February 24, 2015, a request was sent to the New York City Comptroller's Office to determine whether § 87(2)(b) or § 87(2)(b) has filed a notice of claim regarding either of these incidents. Results will be included in the case file upon their receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) was previously a victim in CCRB § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(b) was previously the complainant/victim in CCRB § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- PO Glazer has been a member of the NYPD for four years, and is the subject of 25 allegations within nine cases. Eight of these are vehicle search allegations. There is one substantiated allegation against PO Glazer, § 87(2)(b) [REDACTED] in CCRB case number 201409418. The Board recommended Command Discipline A, and the NYPD disposition is pending (encl. 2A-B)
- PO Golat has been a member of the NYPD for three years, and is the subject of 17 allegations

within seven cases. Among the allegations against him, there are none substantiated, § 87(2)(g) (encl. 2C)

- PO Shatkin has been a member of the NYPD for six years, and is the subject of 20 allegations within nine cases. Among the allegations against him, there are none substantiated, § 87(2)(g) § 87(2)(b) a discourtesy allegation against PO Shatkin that was investigated via CCRB case number 201400864. (encl. 2D-E)

Potential Issues

Victim Contacts Attempts:

- On February 6, 2014, during his CCRB interview, § 87(2)(b) provided an address and phone number for § 87(2)(b). On February 20, 2014, the investigator attempted to contact § 87(2)(b) at this phone number, and was told by the person that answered that no one by that name could be reached at that number. Also on February 20, 2014, § 87(2)(b) was mailed a please call letter, which was not returned to the CCRB. § 87(2)(b) arrest report from September 20, 2013, which was obtained for the investigation of CCRB case number § 87(2)(b) listed a distinct address for him than the one § 87(2)(b) provided, so on February 21, 2014, § 87(2)(b) was mailed an additional please call letter to that address, and that letter was also not returned to the CCRB. A February 21, 2014 Lexis Nexis database search yielded a phone number for § 87(2)(b) at the address listed on his arrest report, and that number was called five times during the period starting February 21, 2014, and ending May 13, 2014. Also on May 13, 2014, § 87(2)(b) was mailed a final please call letter, which was not returned to the CCRB by the United States Postal Service. On February 12, 2015, § 87(2)(b) name was referenced against the New York City Department of Correction database, and it was determined that he was not incarcerated. To date, § 87(2)(b) has not contacted the CCRB in response to any of the investigator's attempts to contact him.

October 2013 Incident Date:

- § 87(2)(b) was unable to provide a date for the October of 2013 incident. He believed that the incident occurred in the middle of the month, on a Tuesday, Wednesday or Thursday. On February 21, 2014, PO Glazer's memo book entries from October 15, 16, 17, 22, 23 and 24 were requested in accordance with § 87(2)(b) beliefs regarding the incident date. Although the incident date was eventually determined to be October 22, 2013, PO Glazer did not make any pertinent entry. On October 27, 2014, all of the Stop, Question and Frisk Reports completed by PO Glazer and PO Shatkin during October of 2013 were requested. None of the results pertained to this incident (encl. 10A-R). On November 5, 2014, the investigation determined the October incident date to be October 22, 2013, via inquiry results from the NYPD Management Information Systems Division, which showed that on October 22, 2013, inquiries were made into § 87(2)(b) and § 87(2)(b) identifications at 6:10 p.m., 6:16 p.m., and 6:28 p.m. using PO Glazer's tax ID number (encl. 9B-KKK).

November 2013 Incident Date:

- § 87(2)(b) reported that § 87(2)(b) was arrested during the November 22, 2013 incident. However, on February 21, 2014, BADS searches yielded no arrests for § 87(2)(b) on any date in November of 2013. Also on February 21, 2014, the investigator reviewed the BADS results for all arrests in the 121st Precinct during November of 2013, and found none pertinent. The results of these searches were reevaluated and confirmed on February 24, 2015. Also on February 24, 2015, a BADS search for all of PO Glazer's arrests during November of 2013 was conducted, yielding three results, none of which applied to § 87(2)(b). The 121st Precinct Command Log from November 22, 2013 does not indicate that § 87(2)(b) was arrested or brought to the stationhouse for any reason (encl.

Findings and Recommendations

Explanation of Subject Officer Identification

October 2013 Incident:

- § 87(2)(b) and § 87(2)(b) both identified PO Glazer as stopping § 87(2)(b) vehicle and searching therein on October 22, 2013. § 87(2)(b) identified PO Glazer by name and description, and § 87(2)(b) identified him via a photo viewing on November 26, 2014 (encl. 4M-S). MISD results indicate that inquiries were made into § 87(2)(b) and § 87(2)(b) identifications at 6:10 p.m., 6:16 p.m., and 6:28 p.m., respectively, using PO Glazer's tax number. There were no earlier checks conducted using PO Glazer's tax number that day. However, PO Glazer testified and documented in his memo book that his tour did not begin until at 6:30 p.m., which is after the time of the stop (encl. 5A-E), and the pertinent Roll Call confirmed this (encl. 11L-S). PO Glazer also testified that although the MISD system indicated that the inquiries were made into § 87(2)(b) and § 87(2)(b) identifications using his tax number, he had not made them, and said another officer could have made the inquiries while PO Glazer's tax number was still logged into the system, either on a computer in the stationhouse or in an RMP. Still, PO Glazer did acknowledge that he has interacted with § 87(2)(b) and § 87(2)(b) on multiple occasions, including on August 15, 2013, September 20, 2013 and January 15, 2014. § 87(2)(b)

§ 87(2)(g)

- § 87(2)(b) described the other officer involved in the October 22, 2013, incident as a 30 year old white male, 6'4" with an average build and dark, dirty blond hair. This description is distinct from that he provided of another officer, also a white male, between 25 and 30 years old, 5'11" to 6', 295 pounds with a heavy build and black, slicked back hair, who he testified was involved in other incidents, and was determined by the investigation to be PO Leonid Shatkin. Via a single photo viewing, § 87(2)(b) selected PO Shatkin as the other officer involved in the October 22, 2013 incident, but it should be noted that based on his CCRB interviews, PO Golat's current appearance differs from that in his NYPD photograph as shown to § 87(2)(b) during the photo viewing in that he now has longer hair that he wears

Response	Percentage
Yes, the U.S. should take action to address climate change	95%
No, the U.S. should not take action to address climate change	5%

- § 87(2)(b) identified PO Glazer and PO Shatkin as involved in the incident that he reported as occurring in November of 2013 based upon their prior interactions with him.
§ 87(2)(g)

§ 87(2)(g)

Allegation E - Abuse of Authority: On October 22, 2013, at § 87(2)(b) in Staten Island, PO Jonathan Glazer frisked § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) in Staten Island, PO Leonid Shatkin stopped § 87(2)(b) and

§ 87(2)(b)

Allegation K—Force: On an unknown date in November of 2013, in front of § 87(2)(b)

§ 87(2)(b) in Staten Island, PO Jonathan Glazer used physical force against § 87(2)(b)

Allegation L—Abuse of Authority: On an unknown date in November of 2013, in front of

§ 87(2)(b) in Staten Island, PO Jonathan Glazer frisked § 87(2)(b)

Allegation M—Abuse of Authority: On an unknown date in November of 2013, in front of

§ 87(2)(b) in Staten Island, PO Leonid Shatkin frisked § 87(2)(b)

Allegation N—Abuse of Authority: On an unknown date in November of 2013, in front of

§ 87(2)(b) in Staten Island, PO Leonid Shatkin searched § 87(2)(b)

Allegation O—Abuse of Authority: On an unknown date in November of 2013, in front of

§ 87(2)(b) in Staten Island, PO Jonathan Glazer searched the car in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation P—Abuse of Authority: On an unknown date in November of 2013, in front of

§ 87(2)(b) PO Leonid Shatkin threatened to arrest § 87(2)(b)

§ 87(2)(b) reported that this incident, during which § 87(2)(b) was arrested, occurred on November 22, 2013. § 87(2)(b) did not respond to the investigator's attempts to contact him to provide a statement regarding this complaint. No police documentation was found to confirm that § 87(2)(b) was arrested on that date, or any time between November 1, 2013 and December 31, 2013. PO Glazer and PO Shatkin's arrests during that time period were reviewed, and none of them were applicable to this incident. The pertinent 121st Precinct Command Log did not indicate that § 87(2)(b) was brought to the stationhouse for any reason. When provided with details of the incident, neither PO Glazer nor PO Shatkin had any specific recollection of it or could provide an alternative date. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations I, J, K, L, M and N** be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Team: 3

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date